

The Usufruct License (UFL)

Version 3.8 • Operational Scope: Decentralized

LicenseRef-UFL-3.8-D-K • repo tag UFL-D-1a-K • canonical text, whitepaper, and FAQ:
<https://github.com/estejosh/UFL-Usufruct-License>

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1A. Operational Scope

The Operational Scope declared above states the only limit, if any, on Section 1's free grant. Exactly one scope applies to this Software:

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the wire or transfer, which the paying party may deduct from the payment. This scope's dispute process, limit of liability, and own-risk terms take effect for a Licensee only when the Licensee completes the affirmative step in Section 9, which the Software must present before first use and which shows them. The Software must not run until the Licensee has completed that step, so a Licensee found running the Software is treated as having completed it, and running the Software with that step bypassed, removed, or forged breaches this license and makes that copy a modified version, so the Licensor owes the person running it no liability of any kind, including the amount stated below. A Licensor adopts this scope only by building that step into the Software as a gate, and Software that does not have it is licensed under the Unconditional scope instead. A modified version, fork, or independent reimplementation of the Software is not the Software for the purposes of this scope. Whoever creates, distributes, or uses one does so entirely at their own risk, and the Licensor has no liability for it of any kind, including the amount stated above. In any arbitration or court proceeding under this license, each party bears its own costs and attorney fees, except that the arbitrator or court may award reasonable costs and fees against a party whose claim or defense is frivolous or brought in bad faith, and that award is outside the limit. Nothing in this scope limits liability that the law does not allow to be limited, waives a claim or right that the law gives a party and does not allow to be waived, or limits a party's right to seek an injunction in court to stop conduct that Section 2 reserves or that infringes the Licensor's intellectual property.

Contracts. This Release is a Contract Release: the Software is, or includes, smart contracts, which are programs deployed to a blockchain or similar distributed ledger and executed by it. In the paragraphs below, "Source" means the human-readable source code of the Software, "Bytecode" means its compiled form, a "Deployment" means one deployment of that Bytecode at one address on one chain, and "calling" a Deployment means sending a transaction or message to it, reading from it, or invoking it from any wallet, script, application, or other contract, directly or through any intermediary. The choice to declare a Contract Release is made once for the Release, as the choice of scope is, and adds nothing to this license beyond these paragraphs. A Contract Release's scope may be Unconditional or Decentralized, and it declares no Components.

Calling a Deployment, integrating with it, and composing with it, including by other contracts, is free and unconditional for everyone, under any Operational Scope. It needs no payment, permission, or acceptance. Nothing in this license limits which contract, wallet, or person may call a Deployment, or what they do with what it returns. Calling a Deployment is not distributing it, is not incorporating it into another product under Section 2(b), and does not make the calling contract, front end, script, or application a modified version or derivative of it. Writing code that uses a Deployment's published interface to call it is likewise free.

Section 2(a) applies to a Contract Release in this way. A copy of Bytecode is a copy of the Software, whether or not the person who makes it has the Source. Deploying Bytecode of the Software, or Bytecode compiled from the Source or from a modified or substantially similar version of it, to a chain where anyone other than the person who deployed it can call it is a reserved act under Section 2(a), unless the paragraph on redeployment below permits it. These are not reserved acts for anyone: the Licensor's publication of the

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Section 2A applies to a redeployment of a Contract Release as if it were a fork of decentralized software, even though a contract is not a node, client, or peer. A person may redeploy the Software, or a modified version of it, on these conditions: (i) the redeployed Source carries at its top the notice described below, unchanged, and a statement that it is derived from [PROJECT NAME] that names the origin Deployment by chain and address, and the same credit appears in the redeployment's documentation, or, where the Source is not shown, in its published metadata; (ii) the parts taken from the Software stay under this license; and (iii) the person redeploys at their own risk, and the Licensor has no liability of any kind for the redeployment, for anything it does, or for any loss of assets in it. A redeployment without that credit, or with the notice removed or falsified, is not permitted by Section 2A and needs a separate license under Section 2(a). Section 2(c) is unchanged: a redeployment may not use the Licensor's name or marks to claim compatibility.

A caller sees no terms before calling, and a Deployment cannot present the step that Section 9 describes. This license therefore does not treat calling a Deployment as acceptance of anything, and does not bind a person who only calls a Deployment to any term that depends on acceptance. Sections 2 and 2A bind a person who deploys or redeploys, without acceptance, because they limit what a person may do with someone else's copyrighted work. A term that needs acceptance, such as a limit of liability or a dispute process in the Operational Scope, binds a person who completes the Section 9 step in a front end, app, wallet, or tool that the Licensor provides for using the Deployment, and only that person. A person who completes no such step, a plain caller included, is bound by none of those terms and has the rights the law gives them against the Licensor. The step is shown and recorded as Section 9 provides, and the record stays on the Licensee's own systems: neither a Deployment nor the Licensor's tools write a record of acceptance to a chain. Where a Deployment's governance, whether a vote, a timelock, or another process the Software's own rules set, points a proxy back at an implementation that is already deployed, that is not a new Release and not a move to an earlier version of this license: the earlier implementation keeps the Ruling License it always had. Whether and when to do so is for that governance, and is not the Licensor's alone to decide.

A Release of a Contract Release is one Deployment, identified by its chain, its address, and the hash of its verified Source, or a set of Deployments published together from the same Source. Its Ruling License is the one its notice states. A proxy contract is not a Release of its own: each implementation contract that a proxy points to is its own

Release, with its own Ruling License, fixed when that implementation is deployed. Pointing a proxy at a new implementation publishes a later Release, subject to Section 1C, including its rules that a Licensor moves only forward and gives notice of a move; the new implementation's notice, and the places where the Licensor announces upgrades, give that notice. The Ruling License of the implementation that was replaced, and the rights it gave, do not change.

The Source of each Contract Release begins with an SPDX line naming this license's identifier as the generator prints it, followed by a comment that names this license, its version, and the Operational Scope, gives the canonical source <https://github.com/estejosh/UFL-Usufruct-License>, and states the SHA-256 hash of the license file kept in the Licensor's repository for that Release. That notice is the statement of the Ruling License that Section 1C calls for, and counts as including the license text with the Deployment; the full text is in the Licensor's repository at the commit the Source was published from. Where Source is flattened into one file, the file's SPDX line may be an SPDX expression that lists each license that applies to code in the file, and this license applies only to the code that is under it. This license governs the Release it is published with and the code that is under it. Other releases of the same project, including earlier ones under another license such as MIT, keep the terms they were published under. A person who forks, redeploys, verifies, lists, indexes, or builds on the Software is responsible for their own software and for the licenses it carries, and nothing here makes the Licensor responsible for what they publish. A block explorer or verification service that only displays Source is not making a reserved act.

This notice states what a person who calls a Deployment should know. Where the Software is decentralized in fact, that is, it has no administrator key, no upgrade key, and no pause or seizure function held by the Licensor or anyone else, then once it is deployed it runs as public, shared software: it is maintained in public, anyone can read it, and anyone can propose updates to its Source, but there is no company or person who operates it, who can reverse or correct what it does, or who can be sued over it. A Deployment can hold or move assets, can lose them through an error in the Software or in anything it calls, and cannot be changed after it is deployed unless it was built to be upgraded. The Software, including each Deployment, is provided as is, as Section 5 says, and a person who calls a Deployment does so at their own risk. A Licensor that keeps such a key or function must say so in the Source notice and must not describe the Software as decentralized. This paragraph is a notice. It does not limit any liability that the law does not allow to be limited, and it does not bind anyone to any term.

A Deployment can hold or move assets, can lose them through an error in the Software or in anything it calls, and cannot be changed after it is deployed unless it was built to be upgraded. The Software, including each Deployment, is provided as is, as Section 5 says, to everyone who uses it, and a person who calls a Deployment does so at their own risk. This paragraph is a notice. It does not limit any liability that the law does not allow to be limited, and it does not bind anyone to any term.

The Decentralized scope above applies to a Contract Release as the paragraph on acceptance says: to a person through the step in a front end, app, wallet, or tool that the

Licensors provide, and to a person who redeploys under Section 2A, to whom its limit of liability, payment, and dispute terms also apply. Where the scope speaks of the Software running, or of its step being bypassed, removed, or forged, it means that front end, app, wallet, or tool and not a Deployment: a Deployment is called without any step, and calling one is not a breach. The scope's rule that Software without the step is licensed under the Unconditional scope applies to a Contract Release whose Licensor provides no such tool, and for it the paragraph on acceptance is all that binds anyone to a term that needs acceptance.

Splitting the Software. A Licensor may split the Software into parts that carry different Operational Scopes, for example a free core and a paid part, where this license allows Components, if the split is honest and clearly drawn. The header must name each part by path, glob, directory, or package and state its scope. The Licensor's README, pricing page, and any listing of the Software must describe each part's scope as the header states it, and must not describe as free a part that the header withholds. Parts are divided by what the Software is, never by who the user is. A Licensor must not move code between parts, or build the parts to depend on one another, in order to put a use that this license grants free into a paid part. Where the header and the Licensor's other statements disagree, or the header leaves a part unclear, the reading more favorable to the Licensee governs. A Licensor who does not draw the split this way has not split this license, and the whole Software takes the scope the header states first.

1B. Definitions

"Licensor" means the copyright holder named above. "Licensee" means anyone who uses the Software; when an individual uses it for an organization, the organization is the Licensee.

"Production Use" means any use of the Software that is not Non-Production Use.

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"Seat" means each individual — employee, contractor, or other personnel of the Licensee — whose role includes using the Software or relying on its output in the ordinary course of that role, whether or not that individual operates the Software. Individuals whose contact with the Software or its output is incidental or one-time are not Seats. Where a count of Seats matters under this license, it is the highest number of Seats at any time during the period being counted.

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A "Release" is a version of the Software that the Licensor publishes under its own version number, tag, or date. This license applies to each Release separately, and where it refers to the Software, it means the Release the Licensee uses.

With each Release, the Licensor states which version of this license, and which Operational Scope, governs that Release (its "Ruling License"). The statement names

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A Release's Ruling License is fixed when the Release is published. For that Release, the Licensor grants every Licensee the rights its Ruling License gives, perpetually and irrevocably, on that Ruling License's own terms. Nothing the Licensor later does, including publishing a later Release, changing the license in the Software's repository, or adopting a later version of this license, changes, narrows, or ends those rights.

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The following rights are reserved to the Licensor and are NOT granted by Section 1. They require a separate written license from the Licensor, except as Section 2A permits:

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- (ii) keeps the canonical-source notice required by Section 7 intact.

Distributing a fork that removes, obscures, or falsifies this attribution is not permitted under this exception and still requires a separate license under Section 2(a). This section does not affect Sections 2(b) or 2(c): incorporating the Software into another distributed product, and using the Licensor's name or marks to claim compatibility, still require a separate license regardless of attribution.

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Anyone may propose a change for a future version at the canonical source named in Section 7. An adopted proposal becomes a new official version, never a retroactive edit: once a version of this license is published, its text is not changed, and a project that wants a later version's provisions adopts that version's text in full.

2D. Notice Screens

A Licensor may build into the Software a Notice Screen: one short, timed screen shown when the Software starts, that promotes the Licensor's own products or services, or those of anyone the Licensor chooses. The Licensor may apply it to the whole Software or

only to named Components. A Licensor that does this states in the step described in Section 9 which parts of the Software show it, what it is, how long it lasts, and that it appears only at startup, and the Licensee completes that step before first use. A Notice Screen is a term of the free grant for the parts it covers: the Licensee agrees to see it, in exchange for use that would otherwise cost the Published Price. A Licensee who does not want to see it can pay the Published Price under Section 8 where the Published Price allows, and a Licensor may let a paid use end the Notice Screen.

A Notice Screen must: (a) appear once, at startup, and never again during that run; (b) end by itself after the time the step states, and let the user close it sooner by a plain action, including from the keyboard; (c) never keep the Software from doing its work for longer than that time, never cover the whole screen, never take focus from, cover, or block any other window, and leave the user free to load and use other windows and programs while it shows; (d) be text, images, or links shipped inside the Release, with no sound, no flashing, no window outside the Software, and no link opened unless the user chooses; (e) be labeled as a notice or as sponsored; (f) stay out of output that machines read, such as exit codes, logs, and structured data, and out of non-interactive runs; and (g) involve no ad network, no measurement of who saw or clicked it, and no network call to show it.

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3. Why "Usufruct"

In civil law, a usufruct is the right to use property belonging to another and enjoy its benefits, without the right to alter its substance or transfer ownership to someone else. This license grants exactly that: full use, no transfer.

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Where the Licensor requires a recorded step before it will consider a Contribution, such as a signed acknowledgement in a pull request, the author will complete it. The step records the author's agreement to this Section 4 and adds no term to it.

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7. Notice

The canonical-source line at the top of this license text (or an equivalent pointer to <https://github.com/estejosh/UFL-Usufruct-License>) must be kept intact when this license text is copied into another project. This is a notice requirement on the license text itself, not an additional condition on using the Software.

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A use that the Operational Scope withholds from Section 1's free grant ("Paid Use") is licensed under this license, on all of its terms, when the Licensee pays the Licensor's Published Price for it. The "Published Price" is the price the Licensor publishes for that use at a location identified in the Software's repository or documentation. It may be set per Seat, per device, per year, by tier, or by any other measure, but it is a price only: it cannot add to, remove, or change any term of this license.

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9. Acceptance

Using the Software is acceptance of this license. Where the Operational Scope withholds any use, or sets its own limit of liability and dispute process (as the Decentralized scope does), the Software presents, before first use, an affirmative step that names this license's version and Operational Scope, shows any such limit and process, and must be completed: an on-screen agreement, an interactive prompt, or, for non-interactive use, an explicit setting or flag naming the version. Under any other Operational Scope, the Licensor may build in the same step. Where the Software provides that step, the Licensee will complete it and will not bypass it. The Software may record the license version accepted, the time, and the name of the accepting party, and keeps that record only on the Licensee's own systems.

In accepting this license, the Licensee acknowledges that the Software is protected by copyright from its creation, whether or not that copyright is registered, and that any use the Operational Scope withholds, made without Paid Use or a Retroactive License covering it, is use of a copyrighted work outside this license. Nothing in this license limits the Licensor's rights and remedies under copyright law.

10. Usage Statements

Where the Operational Scope withholds any use, the Licensee will, within 30 days of the Licensor's written request and no more than once in any 12 months, give the Licensor a statement signed by a person authorized to act for the Licensee. The statement gives the period covered; whether the Licensee made any use the Operational Scope withholds during that period and, if so, its extent, measured the way the Published Price measures it (for example, in Seats); and any counts of work processed that the Software keeps. It contains no content of any data the Software processed and no identity of the Licensee's clients or customers. The Software may provide a command that produces the statement from its local records.

This license does not require or permit the Software to send information about the Licensee's use to the Licensor for the purpose of enforcing this license. Compliance is shown by the statement in this section, not by monitoring.

11. Output Marks

The Software may embed technical marks in its output showing that the Software produced it and whether it was produced under Paid Use, free Production Use, or Non-Production Use. A mark may not contain the Licensee's identity or the content of any data the Software processed, and may not change the substance of any output. This section discloses those marks to every Licensee. The Licensee will not remove, alter, or forge them.

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Use that the Operational Scope withholds, made without Paid Use covering it, is licensed retroactively once the Licensee pays the following for each period of that use (a "Retroactive License"):

- (a) the Published Price in effect at the start of that period, if the Licensee disclosed the use to the Licensor in writing before the Licensor gave the Licensee written notice of it; or
- (b) three times that Published Price, if it did not;

plus simple interest at 10 percent per year, or the highest rate the law allows if that is lower, from the end of each period until paid. A Retroactive License reaches back no more than three years before the earlier of the Licensee's disclosure or the Licensor's notice.

The Published Price is the price of a license taken up front or disclosed promptly. A Retroactive License covers use the Licensor had to find, and its price reflects that. These amounts are prices for licenses, fixed in advance by this license and the same for every Licensee; they are not damages. Once paid, the use they cover is licensed as Paid Use.

13. Continued Use

The grant in Section 1 is perpetual and is not revoked for nonpayment. A Licensee that owes amounts under Section 8 or Section 12 keeps its rights under Section 1 and may keep using the Software. It remains liable for those amounts, which continue to accrue under Section 12 for any continued use the Operational Scope withholds, until it is

brought current, either by paying them or by a written agreement with the Licensor on how and when they will be paid. Once current, the Licensee continues under this license as before. This section does not limit the Licensor's remedies for conduct that Section 2 reserves.

14. Disputes

This license is governed by California law, without regard to its conflict-of-laws rules, unless the Operational Scope states otherwise.

Unless the Operational Scope provides its own dispute process, mediation and arbitration under this section cover a dispute between the Licensor and a Licensee about whether a use is Paid Use, about any amount owed under Section 8, 12, or 13, or about a usage statement under Section 10 (a "Payment Dispute"). They do not cover a Licensee's use under Section 1's free grant that raises none of those questions. Any other dispute arising out of this license or the Software is left to the law and the courts that would otherwise apply.

A Payment Dispute goes first to mediation. Either party may start mediation by written notice to the other, and the mediation must begin within 30 days of that notice. If the dispute is not resolved within 60 days of the notice, either party may submit it to binding arbitration under the Rules of Arbitration of the International Chamber of Commerce, before a single arbitrator seated in California. The parties may agree in writing to a different schedule.

Mediation and arbitration may be conducted entirely by video conference and electronic submission, and no party is required to attend in person unless the parties agree otherwise. Judgment on an arbitration award may be entered in any court with jurisdiction.

Either party may go directly to court for an injunction to stop conduct that Section 2 reserves or that infringes the Licensor's intellectual property, without first mediating or arbitrating.

Unless the Operational Scope provides its own rule on costs, in any arbitration or court proceeding under this license, the prevailing party is entitled to its reasonable attorney fees and costs.

15. Entire License

This license is the complete set of terms on which the Software is used. No other document, including any document the Licensor publishes, adds to, removes, or changes these terms. A Published Price sets an amount only. The only other agreements this license recognizes are a written agreement under Section 13 on paying amounts already owed, an author's recorded acknowledgement of Section 4, and a separate license for the rights Section 2 reserves, which this license does not grant.

If any provision of this license is held unenforceable, the remaining provisions stay in effect, and the unenforceable provision is enforced to the greatest extent the law allows.

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